

Shri Bholu v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 15 July 2016 · Writ-C No. 21927 of 2016 · **Writ allowed; demand notice and recovery certificate quashed.**

HEADNOTE

Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 is mandatory. A provisional assessment made without notice and without fixing a date of hearing cannot sustain a demand notice or recovery certificate, which are liable to be quashed, without prejudice to a fresh assessment after following the prescribed procedure.

FACTUAL SUMMARY

The petitioner, a consumer, sought quashing of a demand notice dated 13 March 2015 and a recovery certificate dated 29 December 2015 issued by the distribution licensee. He alleged that assessment had been completed without serving a provisional assessment bill, without opportunity to object, and without fixing a date of hearing. After the Court called for instructions, counsel for the licensee fairly stated that the provisional assessment had been made without issuing notice and without fixing a date of hearing.

REUSABLE CONSTRUCTIONS

1. Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 is mandatory; a provisional assessment made without notice and without fixing a date of hearing cannot support a subsequent demand notice or recovery certificate. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(b)

provisional assessment — notice and hearing

HOLDING

In the absence of notice and opportunity of hearing before making a provisional assessment, clause 6.8(b) being mandatory, the demand notice dated 13.03.2015 and recovery certificate dated 29.12.2015 cannot be sustained and stand quashed. The licensee remains free to make a fresh assessment after following the prescribed procedure. ¶ 1

PRINCIPLE TAGS

clause-6.8-hearing-procedure-mandatory-before-uue-conclusion Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 is mandatory. A provisional assessment made without notice and without fixing a date of hearing cannot sustain a demand notice or recovery certificate, which are liable to be quashed ¶ 1